

TENTATIVE RULINGS

August 17, 2026

	Case Name	Tentative
101	2024-01385241 Alvarez vs. American Honda Motor Company, Inc.	Motion for Summary Judgment/Adjudication Defendant American Honda Motor Co., Inc. (“Defendant”) seeks summary adjudication on five issues. Plaintiff’s unopposed requests for the Court to take judicial notice of documents are granted. (Evid. Code, § 452, subd. (c) and (h).) However, the Court may not judicially notice the truth of its contents. (<i>Ragland v. U.S. Bank National Assn.</i> (2012) 209 Cal.App.4th 182, 193.) The Court declines to consider Defendant’s declaration submitted in support of Defendant’s reply. (Code Civ. Proc., § 437c, subd. (b)(4).) The Court notes Defendant did not repeat the issues as stated in the notice verbatim in the separate statement. (Cal. Rules of Ct., Rule 3.1350(b).) Plaintiff did not oppose the motion on this ground. Accordingly, the Court exercises its discretion and considers the merits of the motion. In both summary judgment and summary adjudication proceedings, the pleadings determine the scope of the relevant issues. (<i>Port Medical Wellness, Inc. v. Connecticut General Life Ins. Co.</i> (2018) 24 Cal.App.5th 153, 169.) The standard governing motions for summary judgment and summary adjudication is settled. “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (<i>Ibid.</i>) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) “A court identifies the issues framed by the pleadings, determines whether the moving party’s showing has established facts which negate the opponent’s claim and justify a judgment in the moving party’s favor, and if the summary judgment motion is meritorious on its face, the court will look to whether the opposition demonstrates there are triable, material factual issues.” (<i>Clark v. Baxter Healthcare Corp.</i> (2000) 83 Cal.App.4th 1048, 1054.) The opposing party must show by reference to specific facts the existence of a triable issue as to that cause of action. (<i>Aguilar v. Atlantic Richfield Co., supra</i> , 25 Cal.4th at p. 850.) “A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

A cause of action cannot be established if the undisputed facts presented by the defendant prove the contrary of the plaintiff's allegations as a matter of law. (*Brantley v. Pisaro* (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action cannot be established by submitting evidence, such as discovery admissions and responses, that plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at pp. 854-855; *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff's lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; *see Sheiding v. Dinwiddie Constr. Co.* (1999) 69 Cal.App.4th 64, 80-81 [finding Union Bank rule only applies where discovery requests are broad enough to elicit all such information].)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

The motion shall be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken." (Code Civ. Proc., § 437c, subd. (b)(1).)

The motion and opposition must be accompanied by a separate statement. (Cal. Rules of Ct., Rule 3.1350, subd. (c)(2), (d), (e)(2), (f), and (g); Code Civ. Proc. §437c, subd. (b).) The separate statement must set forth "plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence. The failure to comply with this requirement of a separate statement may in the court's discretion constitute a sufficient ground for denying the motion." (Code Civ. Proc., § 437c, subd. (b)(1).) The format of the separate statement must comply with the requirements set forth in California Rules of Court, Rule 3.1350, subd. (d), (f), and (h).

Issue 1: Second Cause of Action – Violation of Civil Code § 1793.2(b) (30-Day Repair Requirement): Fails as a matter of law because all warranty repairs to the 2018 Honda Accord (VIN 1HGCV1F37JA157818) were completed in fewer than 30 days in total.

"Where those service and repair facilities are maintained in this state and service or repair of the goods is necessary because they do not conform with the applicable express warranties, service and repair shall be commenced within a reasonable time by the manufacturer or its representative in this state. Unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days. Delay caused by conditions beyond the control of the manufacturer or its representatives shall serve to extend this 30-day requirement. Where delay arises, conforming goods shall be tendered as soon as possible following termination of the condition giving rise to the delay." (Civ. Code, § 1793.2, subd. (b).)

Section 1793.2 subdivision (b) can be violated either when a defendant (1) fails to commence repairs within a reasonable time, or (2) fails to conform the vehicle to warranty

within 30 days (the “30-day rule”). (*Kirzhner v. Mercedes-Benz USA, LLC* (2020) 9 Cal. 5th 966, 984.)

Plaintiff’s Complaint alleges both that Defendant “failed to commence the service or repairs within a reasonable time and failed to service or repair the Vehicle to conform to the applicable warranties within 30 days, in violation of Civil Code section 1793.2, subdivision (b).” (Complaint, ¶ 43.) Defendant did not meet Defendant’s initial burden to show service and/or repair were commenced within a reasonable time.

Because Defendant did not meet its initial burden, the burden does not shift to Plaintiff to raise a triable issue of material fact. (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468.)

Accordingly, the motion is denied as to this issue. (Code Civ. Proc., § 437c, subd. (f)(1).)

Issue 2: Third Cause of Action – Violation of Civil Code § 1793.2(a)(3): Fails as a matter of law because AHM provided all authorized dealerships with the necessary technical literature, service procedures, and parts to perform any required warranty repairs.

“Every manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall...Make available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period.” (Civ. Code, § 1793.2, subd. (a)(3).)

Defendant met its initial burden to show Defendant made available sufficient service literature and replacement parts to effect repairs within the express warranty period. (Defendant’s Material Fact [“DMF”] No. 15 and 16.)

Plaintiff did not dispute these facts nor raise a triable issue of material fact as to whether sufficient parts or literature was available during the express warranty period. Plaintiff did not show any inference arose as to whether sufficient literature or parts were made available during the express warranty period. Accordingly, the motion is granted as to this issue.

Issue 3: Fourth Cause of Action – Breach of Implied Warranty of Merchantability (Civil Code §§ 1791.1 and 1794): Fails as a matter of law because the Subject Vehicle was safe, reliable, and fit for its ordinary purpose during the warranty period.

“The duration of the implied warranty of merchantability and where present the implied warranty of fitness shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable; but in no event shall such implied warranty have a duration of less than 60 days nor more than one year following the sale of new consumer goods to a retail buyer.” (Civ. Code, § 1791.1, subd. (c); *see, Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304.)

The implied warranty “could be breached after delivery...this is a change from the Uniform Commercial Code, under which the implied warranty could be breached only at the time of delivery.” (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1309; *see, Jones v. Credit Auto Center, Inc.* (2015) 237 Cal.App.4th Supp. 1, 9 [“a breach of the implied warranty of merchantability may be based on a defect which becomes known *after* a sale or delivery to a buyer.”].)

“The breach occurred when the latent defect came to light, which was within the time period set forth in Civil Code section 1795.5, subdivision (c).” (*Jones v. Credit Auto Center, Inc.* (2015) 237 Cal.App.4th Supp. 1, 10.)

Defendant met its initial burden to show no breach of the implied warranty of merchantability occurred within the first year of delivery. (DMF No. 18-21.)

Although Plaintiff contends the defects were latent, Plaintiff offers no evidence to raise a triable issue as to whether any alleged defect was latent. Plaintiff did not meet Plaintiff’s shifted burden to raise a triable issue of material fact. The motion is granted as to this issue.

Issue 4: Fifth Cause of Action – Fraudulent Inducement / Concealment: Fails as a matter of law because Plaintiff cannot identify any actionable misrepresentation or omission by AHM, relied on no statements from AHM before leasing the vehicle, and admitted she would have leased the vehicle regardless.

The elements for a cause of action for deceit by concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage. (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.)

“A duty to speak may arise in four ways: it may be directly imposed by statute or other prescriptive law; it may be voluntarily assumed by contractual undertaking; it may arise as an incident of a relationship between the defendant and the plaintiff; and it may arise as a result of other conduct by the defendant that makes it wrongful for him to remain silent.” (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 867.)

The elements of promissory fraud or fraud in the inducement are (1) the defendant made a promise to the plaintiff, (2) at the time the promise was made, the defendant did not intend to perform the promise; (3) the defendant intended to cause the plaintiff to rely on the promise; (4) the plaintiff reasonably relied on the promise; and (5) the plaintiff was harmed as a result. (*Lazar v. Sup. Court* (1996) 12 Cal.4th 631, 638-639; *Muraoka v. Budget Rent-A-Car, Inc.* (1984) 160 Cal.App.3d 107, 119.)

Promissory fraud (aka false promise) is sometimes referred to as a claim of “fraudulent inducement.” (See, *Agosta v. Astor* (2004) 120 Cal.App.4th 596, 603, citing *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638 [“An action for promissory fraud may lie where a defendant fraudulently induces the plaintiff to enter into a contract.”].)

“To establish a claim of fraudulent inducement, one must show that the defendant did not intend to honor its contractual promises when they were made.” (*Food Safety Net Services v. Eco Safe Systems USA, Inc.* (2012) 209 Cal.App.4th 1118, 1131.)

Defendant did not meet its initial burden to show Plaintiff cannot prevail on this fifth cause of action or that Plaintiff has no evidence and cannot reasonably obtain evidence to establish an essential element of this cause of action. (*Aguilar v. Atlantic Richfield Co., supra*, 25 Cal.4th at pp. 854-855; *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590; see *Sheiding v. Dinwiddie Constr. Co.* (1999) 69 Cal.App.4th 64, 80-81.)

		The Golden Rule of Summary Adjudication requires all material facts be set forth in the separate statement – “if it is not set forth in the separate statement, <i>it does not exist.</i>” (<i>United Community Church v. Garcin</i> (1991) 231 Cal.App.3d 327, 337.) Because Defendant did not meet its initial burden, the burden does not shift to Plaintiff to raise a triable issue of material fact. (<i>Consumer Cause, Inc. v. SmileCare</i> (2001) 91 Cal.App.4th 454, 468.) Accordingly, the motion is denied as to this issue. Issue 5: Claim for Punitive Damages: Fails because Plaintiff has no evidence of oppression, fraud, or malice by AHM. Defendant did not meet its initial burden on this issue. Although the parties addressed this issue in their memorandums, Defendant did not address this issue in Defendant’s separate statement. The Separate Statement in support of a motion must separately identify each claim for damages that is the subject of the motion and each supporting material fact claimed to be without dispute with respect to claim for damages that is the subject of the motion. (Cal. Rules of Ct., Rule 3.1350(d).) “The supporting papers shall include a separate statement setting forth plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence. The failure to comply with this requirement of a separate statement may in the court’s discretion constitute a sufficient ground for denying the motion.” (Code Civ. Proc., § 437c, subd. (b)(1).) The Golden Rule of Summary Adjudication requires all material facts be set forth in the separate statement – “if it is not set forth in the separate statement, <i>it does not exist.</i>” (<i>United Community Church v. Garcin</i> (1991) 231 Cal.App.3d 327, 337.) Because Defendant did not meet its initial burden, the burden does not shift to Plaintiff to raise a triable issue of material fact. (<i>Consumer Cause, Inc. v. SmileCare</i> (2001) 91 Cal.App.4th 454, 468.) Accordingly, the motion is denied as to this issue. Defendant is ordered to give notice.
102	2023-01352224 Lindeman vs. FCA US, LLC	Motion to Substitute Plaintiffs’ Motion to Substitute Successor Trustee Ropey Trujillo in Place of Deceased Plaintiff, Charles Lindeman, is granted. “On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent’s personal representative or, if none, by the decedent’s successor in interest.” (Code Civ. Proc., § 377.31.) Here, the Successor Trustee, Ropey Trujillo, has submitted a declaration that complies with all the requirements of CCP section 377.32. (ROA 164.) As such, the Court grants the motion and orders Ropey Trujillo, as Successor Trustee, be substituted for Charles